

Our ref: PID-2023-100002

18 January 2023

Dr Richard McLean
By email: richarddrawsstuff@gmail.com

Dear Dr McLean

Notification of decision to not allocate your disclosure

I refer to your disclosure to our Office received 31 December 2022.

My assessment of your disclosure

I have finalised my assessment under section 26 of the *Public Interest Disclosure Act 2013* (PID Act) of the information you provided to our Office.

It might be helpful to you if I first explain what constitutes a public interest disclosure (PID). Under the PID Act, 3 criteria must be met:

1. The discloser is a public official as defined under section 69 of the PID Act.
2. The disclosure was made to an authorised internal recipient as defined under section 34 of the PID Act.
3. The information tends to show, or the discloser believes on reasonable grounds that the information tends to show, one or more instances of disclosable conduct (disclosable conduct is detailed in section 29 of the PID Act).

Based on the information you provided, I am unable to progress this matter as an internal public interest disclosure for the following reasons.

Authorised internal recipient

The Ombudsman's Office is not an authorised internal recipient under section 34 of the PID Act. I have reached this decision as I am not satisfied that there are reasonable grounds for you to believe it would be appropriate for the disclosure to be investigated by our Office.

Disclosable conduct

It was not clear to me what Commonwealth agency you were making a disclosure complaint about, or what disclosable conduct you were alleging, and there does not appear to be reasonable grounds for you to believe that the information tends to show one or more instances of disclosable conduct.

A public interest disclosure must concern the conduct of a Commonwealth Government agency (which includes people belonging to the agency and its contracted service providers).

The PID Act does not apply to the alleged conduct of state agencies and private entities, which means that any claims you have made about these types of bodies cannot be progressed under the PID scheme.

Possible next steps

Possible alternative avenues

Although I have determined that your matter cannot be progressed as a PID under the PID Act, you may wish to raise these issues with other agencies having oversight of the various matters you have raised.

Further information about options that may be available to you is available at [Complaints | Commonwealth Ombudsman](#).

Contacting the agencies directly

It is open to you to raise your matters as a complaint directly with the agencies concerned for resolution of the issues raised in your disclosure. If you approach these agencies, they will conduct their own assessment of the information you provide. The contact details for each of the agencies are available on their respective websites.

Seeking a reconsideration

If you are dissatisfied with my decision you can request that I reconsider it. You can do this by providing the reasons why you disagree with my decision, in writing, within **seven (7) days** of the date you receive this letter. In the event that I do not change my decision, it would be open to you to seek an independent review by an officer from another team in the Ombudsman's Office. Information about this process can be found here [Complaints about us | Commonwealth Ombudsman](#).

If you have any questions regarding the information in this letter I can be contacted by return email at PID@ombudsman.gov.au or on 1300 362 072.

Yours sincerely

Lisa
Authorised Officer
Public Interest Disclosures
Investigations
Commonwealth Ombudsman

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